

## Justification & Approval For Other than Full and Open Competition

As a legislative branch agency, the Library is subject to the competition and advertising requirements of 41 U.S.C. § 6101. Like the Competition in Contracting Act and the FAR, 41 U.S.C. § 6101 does not require competition when a contracting officer certifies that only one source or brand-name item is available, when dictated by public exigency, or when otherwise authorized by law.

This document sets forth the justification and approval for award of a contract or order by means providing for other than full and open competition per 41 U.S.C. § 6101, LCR 7-210, and, as applicable, FAR 6.302, FAR 13.106-1, FAR 8.405, and FAR 16.505. Contracting without competition shall not be justified on the basis of a lack of advance planning or concerns related to availability of funds.

This form shall be used to support instances where competition will be limited to a single source, a limited number of sources, including where a brand name product is required.

### Part 1 – Identification

**1. Contracting Agency and Activity:** Library of Congress, U.S. Copyright Office, Assistant Register and Director of Operations

**2. Nature of Action Being Approved**

- ☒ Contract (or modification)
- ☐ LoC or Leg Branch Order (or modification)
- ☐ GSA Schedule or GWAC: Identify Schedule/Contract
- ☐ Other: Identify

Plan ID Number: 2025-COP-0025  
Contractor (or Brand Name): Capitol Hill Hotel  
Estimated Value (Base and all options): \$ XXXXXXXXXX  
Period of Performance: 09/13/2025-09/21/2025

**3. Description of Supplies or Services Required to Meet Library Needs**

The Library requires the following supplies or services: In conjunction with the World Intellectual Property Organization (WIPO), the U.S. Copyright Office (USCO) is holding an International Copyright Institute (ICI) educational program to teach foreign government officials of developing countries and countries in transition about U.S. Copyright law and policy. As part of the program, the USCO will supply 26 hotel rooms in the vicinity of the Library of Congress to ICI participants at the GSA Per Diem rates. Hotel rooms will be needed for 09/13/2025 to 09/21/2025. Each hotel room is required to have a queen bed, an in-room safe capable of holding a laptop computer, and kitchen facilities with a refrigerator and microwave oven.

## Part 2 – Program Office Justification & Approval

### 4. Authority for Contracting Without Competition

#### Over \$250,000

For this requirement over \$250,000, under FAR part 6, the basis for contracting without providing for full and open competition is:

- ☐ There is only one responsible source and no other supplies or services will satisfy Library requirements. 41 U.S.C. § 6101(b)(2)(C); FAR 6.302-1.
  - ☐ Library's minimum needs can only be satisfied by contractor's unique capabilities or products. FAR 6.302-1(b)(1).
  - ☐ Source controls copyrights, patents, raw materials, or secret processes cannot be acquired otherwise, or similar circumstances. FAR 6.302-1(b)(2).
  - ☐ Other exception identified in FAR 6.302-1: Identify the exception
- ☐ There is such unusual & compelling urgency that the Government would be seriously injured if competition is not limited. 41 U.S.C. § 6101(b)(2)(B); FAR 6.302-2. Option years are not permitted.
- ☐ Source is expressly authorized or required by statute (e.g., AbilityOne, UNICOR, GPO, GSA Public Buildings Service, Appropriations Act, etc.) per 41 U.S.C. § 6101(b)(1) and FAR 6.302-5: Identify the authority
- ☐ Other basis authorized in 41 U.S.C. § 6101(b) or FAR part 6.302: Identify the exception
- ☐ Library's needs can only be satisfied by a brand-name product or item which is essential to the Government's requirement. FAR 6.302-1(c).
- ☐ The Product is listed on the Library of Congress Enterprise Architecture Repository (LCEAR) database (Attach applicable IT Standard Data Sheet)

#### Up to and including \$250,000

For this requirement up to \$250,000, using simplified acquisition procedures under FAR part 13, the basis for contracting without providing for full and open competition is:

- ☒ Only one responsible source is reasonably available to meet Library requirements. 41 U.S.C. § 6101(b); FAR 13.106-1.
  - ☒ Product or service is reasonably available from only one source.
  - ☐ Source controls copyrights, patents or other exclusive licensing arrangements.
  - ☐ Urgent circumstances; only one source can reasonably deliver by required date. Option years are not permitted.
  - ☐ Source is expressly authorized or required by statute: \_\_\_\_\_
- ☐ Library's needs can only be satisfied by a brand-name product
- ☐ The Product is listed the Library of Congress Enterprise Architecture Repository (LCEAR) database (Attach applicable IT Standard Data Sheet)

### GSA Schedule Order

For this GSA schedule order under FAR part 8, the basis for not competing among GSA schedule-holders and/or specifying a brand name product or item is:

- ☐ An urgent and compelling need exists, and following GSA procedures would result in unacceptable delays. FAR 8.405-6(a)(1)(i)(A).
- ☐ Only one GSA source is capable of fulfilling the requirement at the level of quality required because the supplies or services are unique or highly specialized. FAR 8.405-6(a)(1)(i)(B).
- ☐ In the interest of economy and efficiency, the new work is a logical follow-on to an original order that was placed competitively among GSA schedule-holders (i.e., the original order was not sole-source or limited-source.) FAR 8.405-6(a)(1)(i)(C).
- ☐ Library's needs can only be satisfied by a brand-name product
- ☐ The Product is listed on the Library of Congress Enterprise Architecture Repository (LCEAR) database (Attach applicable IT Standard Data Sheet)

### Order Under Multiple Award Indefinite-Delivery Contract or GWAC

For this order under FAR subpart 16.5, the basis for contracting without providing for full and open competition is:

- ☐ The need is so urgent fair opportunity would result in unacceptable delays. 41 U.S.C. § 6101(b)(2)(C) and FAR 16.505(b)(2)(i)(A).
- ☐ The Library's minimum needs can only be satisfied by contractor's unique capabilities or products. 41 U.S.C. § 6101(b)(1) and FAR 16.505(b)(2)(i)(B).
- ☐ A logical follow-on order in the interest of economy and efficiency. 41 U.S.C. § 6101(b)(1) and FAR 16.505(b)(i)(2)(C).
- ☐ To satisfy a minimum guarantee. 41 U.S.C. § 6101(b)(1) and FAR 16.505(b)(2)(D).
- ☐ Authorized or required by statute. 41 U.S.C. § 6101(b)(1) and FAR 16.505(b)(2)(E).
- ☐ The Library's minimum needs can only be satisfied by a brand-name product or item which is essential to the Government's requirement. 41 U.S.C. § 6101(b)(2)(B) and FAR 16.505(a)(4)(i).
- ☐ The Product is listed on the Library of Congress Enterprise Architecture Repository (LCEAR) database (Attach applicable IT Standard Data Sheet)

## 5. Rationale for Contracting Without Competition

We are authorized to limit competition on the basis of the citation in section 4 because:

Based on historical procurement of hotel rooms to support this event, we know that prices are relatively level amongst competitors in Washington D.C. due to GSA per diem requirements. Prior solicitation yielded nearly identical pricing, which limited any competitive tradeoffs to consideration of proximity to the event location as well as past performance with ICI-sponsored events.

- The proximity of the Capitol Hill Hotel to the Madison Building allows people with disabilities or other handicaps to easily access the event. The Entrances and Exits of both establishments are directly across the street from one another and provide for ADA accessibility.
- Given that the majority of attendees will not have English as their primary language, minimizing logistics for transportation is deemed critical to the success of achieving the goals of the event.

## 6. Actions to Overcome Barriers to Competition Before Subsequent Contract Is Required

To increase competition, we will:

For subsequent requirements, the Library will again conduct market research to see if any nearby hotels offer a substantially reduced rate that might offset the logistics and reduced administrative burden of contracting with the Capitol Hill hotel.

## 7. Program Office Certification

I certify that the description of the Government's minimum needs, schedule requirements, and technical information that provide the basis for this justification are accurate and complete.

|                                                                                     |       |                                                                                      |         |
|-------------------------------------------------------------------------------------|-------|--------------------------------------------------------------------------------------|---------|
|  | COR   |  | 3/13/25 |
| Name                                                                                | Title | Signature                                                                            | Date    |

## PART 3 – CONTRACTING OFFICER DETERMINATIONS & CERTIFICATION

### 8. Efforts to Solicit from As Many Potential Sources As Practicable

Unless a justification is based on FAR 6.302-2, Unusual and compelling urgency, contracting officers shall post justifications for other than full and open competition, including brand name justifications, to the Contract Opportunities website on sam.gov (or eBuy for Brand Name Justifications under FAR Part 8) prior to requesting a proposal or otherwise entering into negotiations.

- ☐ Advance notice will be published in sam.gov for 15 days before a contract is awarded. FAR 5.203(a).
- ☒ Advance or concurrent notice will be published in sam.gov for a reasonable time for commercial items FAR 5.203(a) and 12.204(b).
- ☐ Advance notice will not be published because the action meets the following FAR exception:
  - ☐ Notice would compromise national security. FAR 5.202(a)(1).
  - ☐ Unusual and compelling urgency; notice period would seriously injure Government. FAR 5.202(a)(2).
  - ☐ Expressly authorized or required to be made through another Government agency. FAR 5.202(a)(4).
  - ☐ Order will be placed against an IDIQ contract awarded under FAR 16.5. FAR 5.202(a)(6).
  - ☐ Order will be placed against GSA schedule or other competitively-awarded contract. FAR 5.202(a)(11).
  - ☐ Other:
- ☐ Advance notice will not be published per 41 U.S.C. § 6101; see attached deviation from the FAR per LCR 7-210 § 3.A.

We made the following efforts to interest potential sources in this award: Market research was conducted in prior fiscal years. No further efforts were conducted prior to posting of this J&A.

### 9. Listing of Sources That Expressed Interest in Writing

The following sources expressed interest in this award: N/A

### 10. Additional Information

The following additional information is relevant to this justification and approval: N/A

### 11. Contracting Officer Determination that Price Is Fair and Reasonable

The prices for this contracting action will be determined fair and reasonable based on comparison of the prices to the following (see FAR 15.404-1(b)(2)):

- |                                                                    |                                                                                      |
|--------------------------------------------------------------------|--------------------------------------------------------------------------------------|
| <input type="checkbox"/> Historical prices paid by the Government  | <input checked="" type="checkbox"/> Published competitive price lists (GSA per diem) |
| <input type="checkbox"/> Library's Independent Government Estimate | <input type="checkbox"/> Prices obtained through market research                     |
| <input type="checkbox"/> Other:                                    | <input type="checkbox"/> Prices obtained through competitive proposals               |

### 12. Contracting Officer Determination of Responsibility

- ☒ Checked System for Award Management (or will check in the case of competitive proposals for a brand name product)

### 13. Contracting Officer Determination of Best Value

I have determined that this action represents the best value to the Government because: the proposed source is the only one available that reasonably accommodate logistical concerns related to event proximity.

### 14. Contracting Officer Certification

I certify that, to the best of my knowledge and belief, this justification is accurate and complete. For those actions up to \$750,000, I approve contracting without competition for this requirement.

Loren Fekete

Name

Signature

4/3/2025

Date

**Part 4 – Competition Advocate Approval**  
(Required for actions valued at greater than \$750,000)

- ☐ **Approved.** Based on the information, determinations, and certifications provided by the program office and the contracting officer, and in accordance with the instructions below, I approve contracting without competition for this requirement.

Option periods: ☐ No ☐ Yes, Number through Date

- ☐ **Not Approved.** As explained below, I do not approve contracting without competition for this requirement.

**Comments or instructions:**

|       |                                     |           |       |
|-------|-------------------------------------|-----------|-------|
| _____ | <u>Assist/Assoc General Counsel</u> | _____     | _____ |
| Name  | Title                               | Signature | Date  |

**Part 5 – Senior Procurement Executive**  
(Required for actions valued at greater than \$12,500,000)

**17. Head of the Procurement Activity Approval**

- ☐ **Approved.** Based on the information, determinations, and certifications provided by the program office and the contracting officer, and in accordance with the instructions below, I approve contracting without competition for this requirement.

- ☐ **Not Approved.** As explained below, I do not approve contracting without competition for this requirement.

**Comments or instructions:**

|       |                                       |           |       |
|-------|---------------------------------------|-----------|-------|
| _____ | <u>Director, Contracts and Grants</u> | _____     | _____ |
| Name  |                                       | Signature | Date  |